

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

SAYYID D. MUHAMMADALI,

Plaintiff,

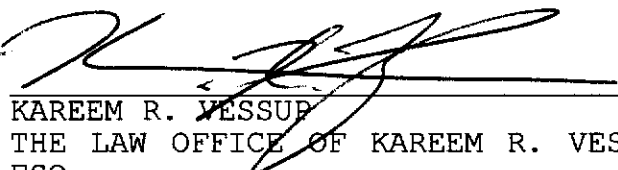
-against-

THE CITY OF NEW YORK, P.O. SOLIS (Tax Reg.
943832), P.O. BARUCCHERI (Tax Reg.
952448), SGT. CORDINER (Tax Reg. 929940)
and SGT. HONSTETTER (Tax Reg. 936777),

Defendants.

SUMMONSPlaintiffs designate
QUEENS County as the
place of trial.The basis of venue
is where the Tort
arose and where
Plaintiff resides.The Tort Arose in:
QUEENS COUNTY, NEW
YORK.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK
JUNE 30, 2014
KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorneys for Plaintiff
SAYYID D. MUHAMMADALI
89-31 161st Street, Suite 705
Jamaica, New York 11432
Our File No. 13-1340TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007P.O. Solis
1 Police Plaza, Room 1100

New York, NY 10038

P.O. Baruccheri
1 Police Plaza, Room 1100
New York, NY 10038

Sgt. Cordiner
1 Police Plaza, Room 1100
New York, NY 10038

Sgt. Honstetter
1 Police Plaza, Room 1100
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
SAYYID D. MUHAMMADALI,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. SOLIS (Tax Reg.
943832), P.O. BARUCCHERI (Tax Reg.
952448), SGT. CORDINER (Tax Reg. 929940)
and SGT. HONSTETTER (Tax Reg. 936777),

Defendants.
-----X

Plaintiff **SAYYID D. MUHAMMADALI**, by his attorney THE LAW
OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **SAYYID D. MUHAMMADALI** was, and still is, a resident of the County of Queens, City and State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned, Defendants **THE CITY OF NEW YORK, P.O. SOLIS (Tax Reg. 943832) P.O. BARUCCHERI (Tax Reg. 952448), SGT. CORDINER (Tax Reg. 929940) and SGT. HONSTETTER (Tax Reg. 936777)** were and are police officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

4. On or about April 30, 2013 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of

Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. On or about July 22, 2013 the Plaintiff served a Supplemental Notice of Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

6. On or about July 22, 2013 the Plaintiff also served a Notice of Claim regarding a second continuing incident which occurred on or about April 3, 2013, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

7. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and

adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

8. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on February 12, 2014.

9. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceanside Blvd. in the Westbound travel lanes in Far Rockaway, NY Defendants **P.O. BARUCCHERI (Tax Reg. 952448)** and **SGT. HONSTETTER (Tax Reg. 936777)** assaulted and then arrested Plaintiff **SAYYID D. MUHAMMED ALI**.

10. Thereafter Plaintiff was brought to the NYPD 101st Precinct followed by Central Booking and was charged and prosecuted in Queens County Criminal Court for various crimes that Plaintiff was innocent of.

11. After Plaintiff's release from police custody the aforementioned incident continued on April 3, 2013 at approximately 2:30pm when Plaintiff presented himself to the NYPD 101st Precinct to obtain his belongings which were taken from him during his March 30, 2013 arrest. At that time Defendants **P.O. SOLIS (Tax Reg. 9943832)** and **SGT. CORDINER (Tax Reg. 929940)** assaulted and then arrested Plaintiff **SAYYID D. MUHAMMED ALI**.

Plaintiff was again taken to Central Booking and charged with various crimes that he was innocent of.

12. Said prosecutions continued until on or about June 2014 when the criminal prosecutions were resolved by an adjournment in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

13. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "12" with full force and effect as though set forth at length herein.

14. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceanside Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **SAYYID D. MUHAMMED ALI**, restrained him and interfered with his liberty and took him into custody without authority to the 101st Precinct in Queens County and there charged him with various crimes that he was innocent of.

15. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance.

16. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise

privileged by law and at all times Plaintiff was aware of his confinement.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and without any legal right, again wrongfully and unlawfully arrested the Plaintiff **SAYYID D. MUHAMMED ALI**, restrained him and interfered with his liberty and took him into custody without authority and charged him with new and additional crimes that he was innocent of.

19. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance.

20. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his confinement.

AS AND FOR A THIRD CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **SAYYID D. MUHAMMED ALI** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their firearms and/or various other objects which they used to physically seize, strike and/or restrain the plaintiff.

23. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A FOURTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "23" with full force and effect as though set forth at length herein.

25. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **SAYYID D. MUHAMMED ALI** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their firearms and/or various other objects which they used to

physically seize, strike and/or restrain the plaintiff.

26. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants

AS AND FOR A FIFTH CAUSE OF ACTION

27. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "26" with full force and effect as though set forth at length herein.

28. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **SAYYID D. MUHAMMED ALI** in that they subjected him to a harmful or offensive touching.

29. Defendants did not have legal cause to touch the Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

30. Said contact caused the Plaintiff damage and injury.

AS AND FOR A SIXTH CAUSE OF ACTION

31. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "30" with full

force and effect as though set forth at length herein.

32. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **SAYYID D. MUHAMMED ALI** in that they subjected him to a harmful or offensive touching.

33. Defendants did not have legal cause to touch the Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

34. Said contact caused the Plaintiff damage and injury.

AS AND FOR A SEVENTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "34" with full force and effect as though set forth at length herein.

36. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oleancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, forcibly searched and seized plaintiff without previously having legal cause or suspicion to do so.

37. As a result of the aforementioned unlawful search and seizure Plaintiff was subjected to an unlawful assault, unlawful

battery, unlawful and excessive use of force, unlawful arrest and malicious prosecution.

38. Because of the aforementioned conduct of the defendants Plaintiff was damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

39. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "38" with full force and effect as though set forth at length herein.

40. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, forcibly searched and seized plaintiff without previously having legal cause or suspicion to do so.

41. As a result of the aforementioned unlawful search and seizure Plaintiff was subjected to an unlawful assault, unlawful battery, unlawful and excessive use of force, unlawful arrest and malicious prosecution.

42. Because of the aforementioned conduct of the defendants Plaintiff was damaged.

AS AND FOR A NINETH CAUSE OF ACTION

43. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "42" with full force and effect as though set forth at length herein.

44. That on March 30, 2013 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about June 2014, Defendants **P.O. BARUCCHERI (Tax Reg. 952448)** and **SGT. HONSTETTER (Tax Reg. 936777)** deliberately and maliciously prosecuted Plaintiff **SAYYID D. MUHAMMED ALI**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

45. The Defendants **P.O. BARUCCHERI (Tax Reg. 952448)** and **SGT. HONSTETTER (Tax Reg. 936777)**, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

46. The commencement of these criminal proceedings was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

47. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and has had to incur the

expense of hiring a criminal defense attorney to represent his interests during that prosecution.

AS AND FOR A TENTH CAUSE OF ACTION

48. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "47" with full force and effect as though set forth at length herein.

49. That on April 3, 2013 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about June 2014, Defendants **P.O. SOLIS (Tax Reg. 943832)** and **SGT. CORDINER (Tax Reg. 929940)** deliberately and maliciously prosecuted Plaintiff **SAYYID D. MUHAMMED ALI**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

50. The Defendants **P.O. SOLIS (Tax Reg. 943832)** and **SGT. CORDINER (Tax Reg. 929940)** failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

51. The commencement of these criminal proceedings was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

52. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and has had to incur the expense of hiring a criminal defense attorney to represent his interests during that prosecution.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

53. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "52" with full force and effect as though set forth at length herein.

54. Defendants **P.O. SOLIS (Tax Reg. 943832) P.O. BARUCCHERI (Tax Reg. 952448), SGT. CORDINER (Tax Reg. 929940) and SGT. HONSTETTER (Tax Reg. 936777)** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

55. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

56. Plaintiff **SAYYID D. MUHAMMED ALI** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

57. That on or about March 30, 2013 at approximately

12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **SAYYID D. MUHAMMADALI** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

58. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did place Plaintiff **SAYYID D. MUHAMMED ALI** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

59. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel

lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers committed a harmful and/or an offensive touching upon the Plaintiff by wrongfully touching, grabbing, handcuffing and seizing the Plaintiff **SAYYID D. MUHAMMADALI** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

60. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacities as police officers unlawfully searched and seized Plaintiff without consent or lawful authority.

61. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the 101th Precinct in Queens County and there charged him with various crimes. The Plaintiff was thereafter held in custody for more

than 24 hours before he was arraigned and released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

62. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the Defendants, armed police, while effectuating the seizure of the Plaintiff **SAYYID D. MUHAMMADALI** did search, seize, assault and commit a battery and grab the person of the Plaintiff without probable cause or a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned and released on his own recognizance.

63. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **SAYYID D. MUHAMMADALI** in an excessive manner about his person,

causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

64. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did place Plaintiff **SAYYID D. MUHAMMADALI** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

65. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers committed a harmful and/or an offensive touching upon the Plaintiff by wrongfully touching, grabbing, handcuffing and seizing the Plaintiff **SAYYID D. MUHAMMADALI** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize, touch or subject the Plaintiff to the excessive use of force. The Plaintiff did not consent to this illegal touching nor

was this touching privileged by law.

66. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacities as police officers unlawfully searched and seized Plaintiff without consent or lawful authority.

67. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the 101th Precinct in Queens County and there charged him with various crimes. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

68. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the Defendants, armed police, while effectuating the seizure of the Plaintiff **SAYYID D. MUHAMMADALI** did search, seize, assault and commit a battery and grab the person of the Plaintiff without probable

cause or a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned and released on his own recognizance.

69. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary punishment.

70. The Defendants subjected Plaintiff to such deprivations, either in a malicious manner or with reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

71. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and

suffering, all to his detriment. He has suffered severe and permanent injuries of a physical and psychological nature.

AS AND FOR A TWELFTH CAUSE OF ACTION

72. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "71" with full force and effect as though set forth at length herein.

73. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers saw Plaintiff, an African American man, on the sidewalk.

74. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers saw Plaintiff, an African American man who entered the NYPD 101st Pct.

75. Upon information and belief in neither occasion was Plaintiff engaged in any conduct that would legally justify the Defendants stopping, seizing, frisking, questioning or even demanding information from the Plaintiff.

76. Upon information and belief the Defendants approached Plaintiff for no reason other than the fact that he was African American.

77. The Defendant **THE CITY OF NEW YORK**, has previously

implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of unconstitutional stops and frisks of City residents by the New York City Police Department. Said policy remained in effect and was being actively practiced on March 30, 2013 and April 3, 2013.

78. Without the reasonable articulable suspicion required under the Fourth Amendment, NYPD officers, including defendants herein, have been engaged in rampant stops and frisks of individuals, including Plaintiff **SAYYID D. MUHAMMADALI**.

79. NYPD officers, in violation of the Equal Protection Clause of the Fourteenth Amendment, often have used, and on March 30, 2013 and April 3, 2013 used, race and/or national origin - not reasonable suspicion - as the determinative factors in deciding to stop and frisk individuals generally, and Plaintiff herein specifically. The victims of such racial and/or national profiling are principally Black and Latino.

80. The NYPD's widespread constitutional abuses have flourished as a result of, and are directly and proximately caused by, policies, practices and/or customs devised, implemented and enforced by **THE CITY OF NEW YORK. THE CITY OF NEW YORK**, its employees, servants and or agents have acted with deliberate indifference to the constitutional rights of those who would come into contact with NYPD officers by: (a) failing to properly screen, train, and supervise NYPD officers, (b) inadequately monitoring NYPD officers and their stop and frisk practices, (c)

failing to sufficiently discipline NYPD offices who engage in constitutional abuses, (d) encouraging, sanctioning and failing to rectify the NYPD's unconstitutional practices.

81. As a direct and proximate result of defendants' policies, practices, and/or customs, hundreds of thousands of City residents, in particular Black and Latino individuals including Plaintiff herein, have been subjected to unconstitutional stops and frisks by NYPD officers. Indeed, many Black and Latino persons repeatedly have been victims of suspicionless stops and frisk by the NYPD.

82. Moreover, the NYPD's constitutional abuses have been attended by unlawful searches and seizures and, at times, excessive force.

83. Plaintiff **SAYYID D. MUHAMMADALI** was likewise subjected to an unconstitutional stop and frisk among other constitutional abuses including the use of excessive force all occurring on March 30, 2013 and April 3, 2013.

84. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;

f. Freedom from being subjected to excessive use of force;

g. Freedom from being subjected to unlawful summary punishment.

85. **THE CITY OF NEW YORK** subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

86. The direct and proximate results of the Defendants' acts are that the Plaintiff was forced to endure conscious pain and suffering including, but not limited to, severe and permanent physical and psychological injuries.

AS AND FOR THIRTEENTH CAUSE OF ACTION

87. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "86" with full force and effect as though set forth at length herein.

88. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause

89. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

90. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

91. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

92. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "91" as if set forth at length herein.

93. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to

the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

94. As a direct and proximate result of the Defendant's failures Plaintiff sustained physical and psychological injuries and was otherwise damaged.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

95. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "62" as if set forth at length herein.

96. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, owed Plaintiff **SAYYID D.**

MUHAMMED ALI a duty to act reasonably in the carrying out of their duties and responsibilities.

97. That on or about March 30, 2013 at approximately 12:00pm on the Rockaway Freeway approximately 20-30 Feet west of its intersection with Oceancrest Blvd. in the Westbound travel lanes in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, breached their duty to Plaintiff by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless and negligent all in disregard of Plaintiff's rights as a citizen of the United States and the State of New York.

98. As a direct and proximate result of the Defendants conduct on March 30, 2013 plaintiff suffered physical and psychological injuries and he was otherwise damaged.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

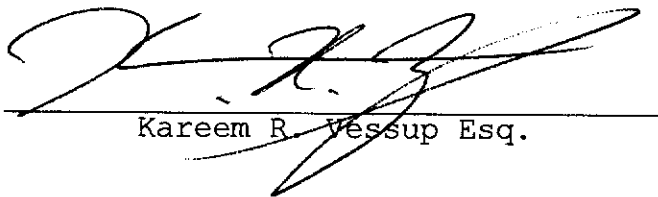
99. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "62" as if set forth at length herein.

100. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, owed Plaintiff **SAYYID D. MUHAMMADALI** a duty to act reasonably in the carrying out of their duties and responsibilities.

101. That on or about April 3, 2013 at approximately 2:30pm within the NYPD 101st Pct. in Far Rockaway, NY the defendants jointly and severally in their capacity as police officers, breached their duty to Plaintiff by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless and negligent all in disregard of Plaintiff's rights as a citizen of the United States and the State of New York.

102. As a direct and proximate result of the Defendants conduct on April 3, 2013 plaintiff suffered physical and psychological injuries and he was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.


Kareem R. Vessup Esq.

Index #:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

SAYYID D. MUHAMMADALI,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. SOLIS (Tax Reg. 943832), P.O. BARUCCHERI (Tax Reg. 952448). SGT. CORDINER (Tax Reg. 929940) and SGT. HONSTETTER (Tax Reg. 936777),

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICE OF KAREEM R. VESSUP ESQ.

Attorney for Plaintiff

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